

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

IN RE:	)	
Erin Gade	)	
License Nos. 068.0057142	)	Docket Nos. 2024-6
097.0001323	)	2024-7
	)	2024-8

STIPULATION AND CONSENT ORDER

STIPULATION

NOW COME the State of Vermont ("the State") by and through Prosecuting Attorney George Hasselback, and Respondent, by and through their counsel Robert Kaplan, who hereby stipulate and agree as follows:

Authority

1. The Vermont State Board of Allied Mental Health Practitioners (the "Board") has authority to issue warnings or reprimands; suspend, revoke, limit, or condition current licenses; or prevent the renewal of lapsed licenses if, after disciplinary hearing, the Board finds that the Respondent has engaged in unprofessional conduct. 3 V.S.A. §129(a); 3 V.S.A. §129a; 3 V.S.A. §814(d); 26 V.S.A. Chapter 65; the Administrative Rules of the Board of Allied Mental Health Practitioners; and the Rules of the Office of Professional Regulation ("OPR").

Alleged Facts

2. Erin Gade ("Respondent"), of Burlington, VT, is licensed by the State of Vermont as a Licensed Clinical Mental Health Counselor ("LCMHC") under license number 068.0057142. This license was first issued on June 30, 2011, and it expires on January 31, 2025.
3. Respondent was also on the State of Vermont Roster of Non-Licensed and Non-Certified Psychotherapists ("NLNCP") under license number 097.0001323. This license was first issued on July 29, 2008, and it expired on November 30, 2012.
4. At all times relevant to this matter, Respondent owned and operated a yoga studio in Williston, Vermont.
5. This studio was in the same building as Respondent's LCMHC practice.
6. Multiple customers of the yoga studio sought therapeutic services from Respondent after meeting her through the yoga studio.

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402

7. Likewise, multiple therapeutic clients of Respondent became customers at Respondent's yoga studio.
8. In either case, Respondent did not address the significant risk that roles could become confused and that professional boundaries may become unclear when therapy clients become customers and/or customers become therapy clients.
9. There is no record that Respondent informed clients/customers of the potential dangers that such dual relationships could have.
10. On or about November 19, 2022, Respondent sent a text message to therapeutic clients/former therapeutic clients identified by the initials "J.H.", "K.M.", and "D.C." after seeing them in a social setting.
11. This text message read, "Special invite to my place after the show."
12. This text message also invited these clients/former clients to, "Bring bathing suits and favorite pair of sunglasses or hair bands (randomness welcomed)."
13. This text message also informed these clients/former clients that there was, "Plenty of space to sleep over if needed (three separate floors)."
14. The next morning, on or about November 20, 2022, Respondent sent these clients/former clients another text message that said, "Next time we sleep over and come to hot tub haven (sic)!"
15. This text message also included a picture of Respondent in a hot tub.
16. On or about December 1, 2022, Respondent terminated her therapeutic relationship with a client identified by the initials "K.M."
17. Following this termination, Respondent continued to associate with K.M. in a social relationship.
18. Subsequently, on or about January of 2023, K.M. visited Respondent at Respondent's home as Respondent was having emotional difficulty related to the death of a family pet.

Violation One: 26 V.S.A. §3271(a)(6) Entering an additional relationship with a client that might impair the licensed clinical mental health counselor's objectivity or otherwise interfere with his or her professional obligations.

19. Paragraphs 2 through 18 are incorporated herein.
20. As a LCMHC, Respondent must refrain from entering an additional relationship with a client that might impair her objectivity or otherwise interfere with her professional obligations.

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402

21. Paragraphs 2 through 18 above demonstrate that Respondent entered a business relationship with multiple therapeutic clients when they began to patronize her yoga studio.
22. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because Respondent committed unprofessional conduct in violation of 26 V.S.A. §3271(a)(6).

Violation Two: 3 V.S.A. § 129a(a)(26) Failing to maintain professional boundaries.

23. Paragraphs 2 through 18 are incorporated herein.
24. Vermont law requires LCMHC's to maintain professional boundaries.
25. Paragraphs 2 through 18 above demonstrate that Respondent failed to maintain professional boundaries when her therapeutic clients would become customers at her yoga studio, her customers at her yoga studio would become therapeutic clients at her practice, she invited clients and/or former clients to her home for social gatherings (specifically to go hot-tubbing), invited clients and/or former client to spend the night at her home following a night out, and had a recently-discharged former client visit her home as Respondent was having emotional difficulty related to the death of a family pet.
26. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because the Respondent committed unprofessional conduct in violation of 3 V.S.A. §129a(a)(26).

Violation Three: 3 VSA 129a(b)(2) Failure to conform to essential standards of acceptable and prevailing practice.

27. Paragraphs 2 through 18 are incorporated herein.
28. The essential standards of acceptable and prevailing practice require a LCMHC to maintain appropriate boundaries with clients and former clients and avoid entering non-professional relationships with clients/former clients when such a relationship may be harmful to the client.
29. Paragraphs 2 through 18 demonstrate that Respondent failed to conform to the essential standards of acceptable and prevailing practice by violating professional boundaries, entering non-therapeutic relationships with multiple clients without proper informed consent, such relationships being potentially harmful to said clients.
30. The essential standards of acceptable and prevailing practice require a LCMHC to officially document, prior to a non-therapeutic interaction with a client/former client (when feasible) the extension of the counseling boundaries beyond conventional parameters. *See* ACA Code of Ethics, Standards A.6.c.

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402

31. The essential standards of acceptable and prevailing practice require a LCMHC to take appropriate professional precautions, such as informed consent, consultation, supervision, and documentation to ensure that judgment is not impaired, and no harm occurs to the client when extending professional boundaries. *See* ACA Code of Ethics, Standards A.6.b.
32. Paragraphs 2 through 27 above demonstrate that Respondent failed to take appropriate precautions when entering a non-therapeutic relationships with multiple clients who became customers of her yoga practice, failed to consult with these clients regarding the risks and benefits of extending the boundaries of the therapeutic relationship, and failed to take steps to ensure that these clients' judgment was not impaired and that no harm would occur to them when extending the professional boundaries.
33. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because the Respondent committed unprofessional conduct in violation of 3 V.S.A. §129a(b)(2).

Understandings

34. This Stipulation is neither an admission of liability by Respondent nor a concession by the State of Vermont that its charges are not well-founded. To avoid delay, uncertainty, inconvenience, and the expense of protracted litigation, the Parties enter this full and final Stipulation pursuant to these Understandings and the Order below. Respondent does not dispute that the State may be able to prove these charges by a preponderance of the evidence if this matter proceeds to a merits hearing.
35. Respondent understands that the Board must review and accept the terms of the Consent Order. If the Board rejects any portion, the entire Stipulation and Consent Order shall be null and void.
36. Respondent specifically waives any claims that any disclosures made to the Board during its review of this agreement have prejudiced Respondent's rights to a fair and impartial hearing if this agreement is not accepted by the Board and proceeds to a contested hearing.
37. Respondent has read and reviewed this entire document and agrees that it contains the entire agreement between the parties.
38. Respondent is not under the influence of any drugs or alcohol at the time Respondent signs this Stipulation and Consent Order.
39. Respondent voluntarily enters into this agreement after the opportunity to consult with legal counsel and is not being coerced by anyone into signing this Stipulation and Consent Order.
40. Respondent voluntarily waives Respondent's right to a contested hearing before the Board and waives any right to appeal from this Stipulation and Consent Order.

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402

41. Respondent agrees that the Order set forth below may be entered by the Board.

ORDER

Based upon the above stipulation, it is **ORDERED AND ADJUDGED** as follows:

- A. Respondent's LCMHC license is hereby **REPRIMANDED**.
- B. Respondent's LCMHC license is hereby **CONDITIONED** commencing with the date of entry of this Stipulation and Consent Order. The conditions are as follows:

1. Issuance of License: Upon the commencement of these conditions, Respondent shall be issued a license labeled "conditioned."
2. Length of Time Conditions Imposed: The conditions shall remain in place until Respondent has completed all conditions as ordered. Respondent shall be subject to the conditions until Respondent completes a **minimum of two (2) years** of LCMHC practice in which she works at **least** forty (40) hours every two (2) weeks as a LCMHC. Part time hours of fewer than forty (40) hours every two (2) weeks shall be credited on a prorated basis. Respondent shall be prohibited from working as a LCMHC for more than forty (40) hours per week during the conditioned period.
3. Required Coursework: Respondent shall, within ninety (90) days following the entry of this Order, at her own expense, complete ten (10) hours of pre-approved online courses, which must include education on ethics, boundaries, dual relationships, and ethical considerations while practicing in a small community. For pre-approval, Respondent must submit to the Case Manager the name of each course, the name of the sponsoring organization, and a description of the course content and/or syllabus. Respondent must achieve a passing score on the post-tests for the courses, and submit test results, workbooks completed in full and in a satisfactory manner, and certificates of completion to the Office of Professional Regulation.

Failure to complete the courses within the prescribed timeframe shall constitute a violation of this Order. The coursework may not be counted toward any continuing education requirement of licensure.

4. Notification to Employers/Program Director: Respondent shall provide a copy of this Stipulation and Consent Order to all employers in any current or future setting in which Respondent practices as a LCMHC and inform them of Respondent's conditional license status. Within ten (10) days of the date of entry of this Consent Order or of any subsequent mental health employment, Respondent shall cause Respondent's immediate supervisor to submit to the Case Manager for approval an employer agreement form, acknowledging receipt of the Stipulation and Consent Order and the ability to comply with the conditions in the Consent Order.
5. Reports from Employers/Program Director. Within one (1) month of the date of this order or within one (1) month of commencing employment in a work setting other than solo private practice and **bi-monthly** thereafter, Respondent shall cause every employer Respondent has worked for during the month to submit an evaluation of

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402

Respondent's work performance and attendance during that month. These reports shall be submitted in writing on forms issued or approved by the Enforcement Case Manager and shall indicate satisfactory performance and attendance.

6. Supervision. Respondent must have general supervision of her practice by a pre-approved LCMHC licensed in Vermont or other pre-approved licensed mental health practitioner, who must be in good standing with the State of Vermont.

In the event Respondent is not employed by an agency that can provide such supervision, Respondent shall, at her own expense, engage a pre-approved supervisor ("Supervisor"), who is a Vermont-licensed LCMHC, PhD Psychologist or other licensed and pre-approved mental health practitioner, to provide supervision regarding profession-specific issues or concerns that arise in Respondent's practice, bearing in mind rules and regulations regarding patient privacy. Supervision must include discussions about transference/countertransference, particularly with challenging and/or long-term clients, as well as the therapeutic rationale for various clinical decisions, such as continuing treatment with a client long-term, frequency of sessions, meeting with a client outside of the office, self-disclosure, ethical boundaries and other ethical and clinical issues. Respondent's consultation with his Supervisor shall take place no less than once bi-weekly by videoconference (or similar) or in person. The pre-approved Supervisor shall provide bi-monthly reports identifying when each supervision meeting occurred, how long it lasted, and generally identifying the profession-specific issues discussed. The Supervisor shall also report any ethical violations, boundary transgressions, or other practice issues or concerns. Respondent shall be responsible for locating a Supervisor and sending the name, contact information, credentials and curriculum vitae of the proposed mentor to the Enforcement Case Manager as part of the pre-approval process.

7. Out-of-State-Practice. Before any out-of-state practice can be credited toward fulfillment of these terms and conditions, Respondent shall first obtain approval prior to Respondent practicing as a LCMHC outside the State of Vermont. If Respondent fails to receive such approval before practicing as a LCMHC outside the State of Vermont, none of the time spent practicing out-of-state will be credited toward the fulfillment of the terms and conditions of this Consent Order. Approval will be given for out-of-state LCMHC practice if the Director of Professional Regulation, in his or her sole discretion, finds that Respondent's planned out-of-state practice does not compromise the supervisory or protective purposes of this Stipulation and Consent Order.

8. Notification of Place of Employment/Personal Address/Telephone Number. Within five (5) days of the date of entry of this Consent Order, Respondent shall notify the Office of Professional Regulation, in writing, of his current place of employment, personal address, and telephone number, as well as the name of any mental health educational programs in which he is enrolled. Respondent shall further notify the Office of Professional Regulation, in writing, within forty-eight (48) hours of any change in employment, personal address, or telephone number.

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402

9. Notification to Other States. In the event Respondent is licensed in a mental health profession in any other state(s), he must inform the licensing Board of the state(s) in which Respondent is licensed of the conditional status of his Vermont LCMHC license within thirty (30) days of the date of entry of this Order. If Respondent fails to provide such notification, it will be considered a violation of this Order.
10. License Renewal. If Respondent's license expires while this Order is still in effect, this Order does not automatically extend the license. In that situation, in order to continue to practice as a LCMHC, Respondent must timely apply for renewal, pay the applicable fee and demonstrate that he has otherwise complied with the requirements for license renewal.
11. Costs. Respondent shall bear all costs of complying with this Consent Order.
12. Violation of this Order. Any violation of this Order may be a basis for an additional disciplinary act. If a complaint of unprofessional conduct is made against Respondent during the term of this Order, this Order shall be automatically extended until the unprofessional conduct matter is concluded.
13. Completion of Conditional License Period. After the minimum conditional license period and completion of the required coursework, Respondent may petition to remove any or all conditions on his license. Respondent must present proof that he has fully complied with the terms of this Order.

C. Notwithstanding any provision above, Respondent must continue to meet all requirements to maintain a LCMHC license, for license renewal, and for license reinstatement.

D. This Stipulation and Consent Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. §129(a).

E. This Stipulation and Consent Order will remain part of Respondent's licensing file and may be used for purposes of determining sanctions in any future disciplinary matter.

AGREED TO:

STATE OF VERMONT
SECRETARY OF STATE

Dated: 12-17-2024

By:

George Hasselback
George L. Hasselback
Prosecuting Attorney
George.hasselback@vermont.gov

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402

Dated: 12/17/24

By:

RESPONDENT

Erin Gade
Erin Gade

Dated: 12/17/24

ATTORNEY FOR RESPONDENT

By:

Robert Kaplan, Esq.

APPROVED AND SO ORDERED:

Dated: _____

By:

Signed by:

Mary Trombly

Chairperson

Date of Entry: 12/23/24

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

IN RE:	)	
Erin Gade	)	
License Nos. 068.0057142	)	Docket Nos. 2024-6
097.0001323	)	2024-7
	)	2024-8

SPECIFICATION OF CHARGES

NOW COMES the State of Vermont (“the State”) and makes the following charges against Erin Gade (“Respondent”):

Authority

1. The Vermont State Board of Allied Mental Health Practitioners (the “Board”) has authority to issue warnings or reprimands; suspend, revoke, limit, or condition current licenses; or prevent the renewal of lapsed licenses if, after disciplinary hearing, the Board finds that the Respondent has engaged in unprofessional conduct. 3 V.S.A. §129(a); 3 V.S.A. §129a; 3 V.S.A. §814(d); 26 V.S.A. Chapter 65; the Administrative Rules of the Board of Allied Mental Health Practitioners; and the Rules of the Office of Professional Regulation (“OPR”).

Statement of Facts

2. Respondent, of Burlington, VT, is licensed by the State of Vermont as a Licensed Clinical Mental Health Counselor (“LCMHC”) under license number 068.0057142. This license was first issued on June 30, 2011, and it expires on January 31, 2025.
3. Respondent was also on the State of Vermont Roster of Non-Licensed and Non-Certified Psychotherapists (“NLNCP”) under license number 097.0001323. This license was first issued on July 29, 2008, and it expired on November 30, 2012.
4. At all times relevant to this matter, Respondent owned and operated a yoga studio in Williston, Vermont.
5. This studio was in the same building as Respondent’s LCMHC practice.
6. Multiple customers of the yoga studio sought therapeutic services from Respondent after meeting her through the yoga studio.
7. Likewise, multiple therapeutic clients of Respondent became customers at Respondent’s yoga studio.

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402

8. In either case, Respondent did not address the significant risk that roles could become confused and that professional boundaries may become unclear when therapy clients become customers and/or customers become therapy clients.
9. There is no record that Respondent informed clients/customers of the potential dangers that such dual relationships could have.
10. On or about September 4, 2022, Respondent held her eight-year-old child on a bed, positioned herself on the child's back, placed her forearm across the child's chest/neck, and yelled at the child that she (the child) was a "terrible daughter" and "was just going to end up being a whore on the streets."
11. Respondent had to be physically removed from the child's back to avoid causing further harm to the child.
12. On or about September 26, 2022, Respondent plead guilty to, was convicted of, received a deferred sentence for, and was placed on probation as a punishment for a misdemeanor count of Cruelty to a Child pursuant to 13 V.S.A. § 1304(a) before the Chittenden County Superior Court in Chittenden County, Vermont.
13. Subsequently, on or about January 21, 2023, Respondent applied for a renewal of her LCMHC license ("the Application").
14. As part of the Application, Respondent was asked the following question: "Since your license was last renewed (or since it was issued if within the last two years): Have you EVER been convicted of criminal misdemeanor or felony in Vermont or ANY other state, federal authority, or other jurisdiction? If "Yes," you must provide detailed written explanation and attach the official court documents (i.e., affidavit of probable cause, information, sentencing documents, docket report) or as requested by the Office."
15. Respondent answered "no" to this question.
16. Applicant signed the Application with the following admonitions and certifications in the Attestation:

Caution to Applicant

A false statement on this application may constitute unprofessional conduct and may be a basis for denial of a license application or discipline of a license, to include revocation. 3 V.S.A. § 129a. A person who declares, certifies, or verifies in a signed writing that a statement is true and is made under the pains and penalties of perjury, and who willfully makes a false statement in the declaration, certification, or verification, shall be guilty of perjury, a crime punishable by imprisonment not more than 15 years or a fine of not more than \$10,000.00, or both. 13 V.S.A. § 2901 & 2904(b).

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402

Certification of Identity

In the case of an application for individual licensure, I am the person in whose name this application is completed; or in the case of a corporate applicant, I am an authorized officer of the applicant corporation, having executive authority to complete this application and personal knowledge of and accountability for the representations herein.

Certification of Accuracy

I understand that submission of this application represents that I have understood each question, that I have been candid and disclosed all relevant information, and that I have answered each question from sound personal knowledge, not a hunch, guess, or supposition. I understand that any failure to provide accurate information could result in a preliminary denial of my application or as a basis for unprofessional conduct charges against my license.

Certification of Truthfulness

I hereby certify, under the pains and penalties of perjury, that the answers, entries, and representations herein are true and accurate.

17. This answer was false, because Respondent had pleaded guilty to a criminal charge on September 26, 2022.
18. Furthermore, at the time of this false answer, Respondent was on probation related to this criminal charge.
19. On or about November 19, 2022, Respondent sent a text message to therapeutic clients/former therapeutic clients identified by the initials "J.H.", "K.M.", and "D.C." after seeing them in a social setting.
20. This text message read, "Special invite to my place after the show."
21. This text message also invited these clients/former clients to, "Bring bathing suits and favorite pair of sunglasses or hair bands (randomness welcomed)."
22. This text message also informed these clients/former clients that there was, "Plenty of space to sleep over if needed (three separate floors)."
23. The next morning, on or about November 20, 2022, Respondent sent these clients/former clients another text message that said, "Next time we sleep over and come to hot tub haven (sic)!"
24. This text message also included a picture of Respondent in a hot tub.

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402

25. On or about December 1, 2022, Respondent terminated her therapeutic relationship with a client identified by the initials “K.M.”
26. Following this termination, Respondent continued to associate with K.M. in a social relationship.
27. Subsequently, on or about January of 2023, K.M. stayed at Respondent’s home for several nights to cook, clean, and care for Respondent, as she was having serious mental and emotional difficulties related to the death of a family pet.

Violation One: 26 V.S.A. §3271(a)(6) Entering an additional relationship with a client that might impair the licensed clinical mental health counselor’s objectivity or otherwise interfere with his or her professional obligations.

28. The State re-alleges and incorporates Paragraphs 2 through 27 above.
29. As a LCMHC, Respondent must refrain from entering an additional relationship with a client that might impair her objectivity or otherwise interfere with her professional obligations.
30. Paragraphs 2 through 27 above demonstrate that Respondent entered a business relationship with multiple therapeutic clients when they began to patronize her yoga studio.
31. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because Respondent committed unprofessional conduct in violation of 26 V.S.A. §3271(a)(6).

Violation Two: 3 V.S.A. § 129a(a)(1) Fraudulent or deceptive procurement of a license.

32. The State re-alleges and incorporates Paragraphs 2 through 27 above.
33. As a LCMHC, Respondent must refrain from the fraudulent or deceptive procurement of a professional license.
34. Paragraphs 2 through 27 above demonstrate that Respondent fraudulently or deceptively procured a license when she applied for a renewal of her LCMHC license, was asked if she had been convicted of any crimes since she last applied for this license and answered “no” despite having plead guilty to, and been convicted of, a criminal offense.
35. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because Respondent committed unprofessional conduct in violation of 3 V.S.A. § 129a(a)(1).

Violation Three: 3 V.S.A. § 129a(a)(26) Failing to maintain professional boundaries.

36. The State re-alleges and incorporates Paragraphs 2 through 27 above.

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402

37. Vermont law requires LCMHC's to maintain professional boundaries.
38. Paragraphs 2 through 27 above demonstrate that Respondent failed to maintain professional boundaries when her therapeutic clients would become customers at her yoga studio, her customers at her yoga studio would become therapeutic clients at her practice, she invited clients and/or former clients to her home for social gatherings (specifically to go hot-tubbing), invited clients and/or former client to spend the night at her home following a night out, had a recently-discharged former client stay at her home for several days to care for her, and attended a three-week yoga retreat out of the United States accompanied by clients and/or recently terminated clients.
39. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because the Respondent committed unprofessional conduct in violation of 3 V.S.A. §129a(a)(26).

Violation Four: 3 VSA 129a(b)(2) Failure to conform to essential standards of acceptable and prevailing practice.

40. The State re-alleges and incorporates Paragraphs 2 through 27 above.
41. The essential standards of acceptable and prevailing practice require a LCMHC to maintain appropriate boundaries with clients and former clients and avoid entering non-professional relationships with clients/former clients when such a relationship may be harmful to the client.
42. Paragraphs 2 through 27 demonstrate that Respondent failed to conform to the essential standards of acceptable and prevailing practice by violating professional boundaries, entering non-therapeutic relationships with multiple clients without proper informed consent, such relationships being potentially harmful to said clients.
43. The essential standards of acceptable and prevailing practice require a LCMHC to officially document, prior to a non-therapeutic interaction with a client/former client (when feasible) the extension of the counseling boundaries beyond conventional parameters. *See* ACA Code of Ethics, Standards A.6.c.
44. The essential standards of acceptable and prevailing practice require a LCMHC to take appropriate professional precautions, such as informed consent, consultation, supervision, and documentation to ensure that judgment is not impaired, and no harm occurs to the client when extending professional boundaries. *See* ACA Code of Ethics, Standards A.6.b.
45. Paragraphs 2 through 27 above demonstrate that Respondent failed to take appropriate precautions when entering a non-therapeutic relationships with multiple clients who became customers of her yoga practice, failed to consult with these clients regarding the risks and benefits of extending the boundaries of the therapeutic relationship, and failed to take steps to ensure that these clients' judgment was not impaired and that no harm would occur to them when extending the professional boundaries.

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402

46. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because the Respondent committed unprofessional conduct in violation of 3 V.S.A. §129a(b)(2).

Violation Five: 3 V.S.A. § 129a(a)(5) Practicing the profession while medically or psychologically unfit to do so.

47. The State re-alleges and incorporates Paragraphs 2 through 27 above.
48. As a LCMHC, Respondent must refrain from practicing the profession when medically or psychologically unfit to do so.
49. Paragraphs 2 through 27 above demonstrate that Respondent held her eight-year-old child on a bed, positioned herself on the child's back, placed her forearm across the child's chest/neck, and yelled at the child that she (the child) was a "terrible daughter" and "was just going to end up being a whore on the streets," thus evidencing a medical or psychological unfitness to practice the LCMHC profession.
50. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because Respondent committed unprofessional conduct in violation of 3 V.S.A. § 129a(a)(5).

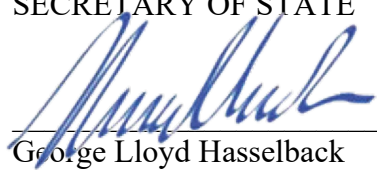
Relief Requested

WHEREFORE, Respondent's professional licenses should be revoked, suspended, reprimanded, conditioned, or otherwise disciplined.

DATED at Montpelier, Vermont this 17th day of January, 2024.

STATE OF VERMONT
SECRETARY OF STATE

By:


George Lloyd Hasselback
Prosecuting Attorney
(802)828-0350
george.hasselback@vermont.gov

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402